

Court No. - 34

Case :- WRIT - C No. - 29231 of 2012

Petitioner :- M/S Bharti Retail Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Diptiman Singh

Respondent Counsel :- C.S.C.

Hon'ble Sheo Kumar Singh,J.

Hon'ble Ram Surat Ram (Maurya),J.

Heard Sri V.N. Singh, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for Power Corporation.

Prayer in this petition is to issue direction to Respondent No.3 to pass appropriate order in accordance with law, on the petitioner's application for granting sanction load of 65 KW power connection to the petitioner in the premises situated at Khasra No. 54/1M, Mandaiyan Nagar Bagh, Tehsil Near Super Market, tehsil Sadar Rampur.

Submission of the learned counsel for the petitioner is that respondent is not sanctioning aforesaid connection as per the U.P. Electricity Supply Code-2005 and due to this delay on the part of the respondent the petitioner is facing problem in his day to day working.

Sri Nripendra Mishra Submits that he may be provided some short possible time to consider the claim of the petitioner.

Here we are not making any comment whether the petitioner is entitled to get the electricity connection or not.

Accordingly, without going into the merits of the case, we dispose of the writ petition with the following directions:

(i) The petitioner is permitted to file a certified copy of this order along with a fresh representation and remind about the completion of the formalities for grant of load as referred

above;

(ii) The respondent No.3, within one week from the date of receipt of the certified copy of this order, will immediately issue a letter informing the petitioner that what type of formalities are required to be completed on his behalf.

(3) Petitioner is permitted to complete all the formalities at his end, within 10 days from the date of receipt of the letter from respondent no.3.

On receipt of entire documents and other formalities if that is completed, the respondent No.3 will take appropriate decision in respect of petitioner's claim preferably within ten days from the date of receipt of the letter.

It is again made clear that we are not deciding the case on merits and the respondent will take decision in accordance with law.

Writ petition stands disposed of accordingly.

Order Date :- 4.6.2012

Manish